

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT PROVIDING THAT A VICTIM OF ASSAULT DETERMINES
5 WHETHER CHARGES ARE FILED; AND AMENDING SECTION 45-5-201, MCA."

6

7 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

8

9 **Section 1.** Section 45-5-201, MCA, is amended to read:

10 **"45-5-201. Assault.** (1) A person commits the offense of assault if the person:

11 (a) purposely or knowingly causes bodily injury to another;

12 (b) negligently causes bodily injury to another with a weapon;

13 (c) purposely or knowingly makes physical contact of an insulting or provoking nature with any
14 individual;

15 (d) purposely or knowingly causes reasonable apprehension of bodily injury in another; or

16 (e) purposely or knowingly provides an individual with rohypnol, flunitrazolam, or gamma-
17 hydroxybutyrate without the individual's consent.

18 (2) A person convicted of assault shall be fined not to exceed \$500 or be imprisoned in the county
19 jail for any term not to exceed 6 months, or both.

20 (3) Except when the victim is developmentally disabled, physically disabled, or suffers from a
21 mental illness causing them to be physically or mentally disabled, the victim of an assault has the sole
22 responsibility of determining whether or not a charge alleging a violation of this section is filed."

23 - END -